

FIRST ENDORSEMENT

Chief Prosecutor, APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr, Department Advocate's Office, May 13, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-28756 against Sergeant Seungwoo Seo, Tax Registry No. 940729. The case was conferenced on May 2, 2024, before Assistant Deputy Commissioner of Trials Vanessa Facio-Lince, who approved the dismissal of the charges in return for the recommended negotiated penalty of a Command Discipline (A) and the forfeiture of five (5) vacation days.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor, APU
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-28756
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, SEO	FIRST SEUNGWOO	M.I.	COMMAND 063 PRECINCT
SHIELD NO. 2678	TAX REGISTRY NO. 940729	SOCIAL SECURITY NO.	DATE APPOINTED 01/09/2006	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Sergeant Seungwoo SEO, on or about June 19, 2022, at approximately 0915, while assigned to 063 PCT and on duty, in the vicinity of the 63rd Precinct stationhouse, Kings County, abused his authority as a member of the New York City Police Department, in that Sergeant SEO interfered with § 87(2)(b) use of a recording device without police necessity, when Sergeant SEO told § 87(2)(b) that he had to turn off his camera, whilst § 87(2)(b) was standing on a public sidewalk.	DISMISSED	A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.

DC Bontino *6/7/24*
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Caber *7/30/24*
POLICE COMMISSIONER DATE



POLICE DEPARTMENT

July 24, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

Re: CCRB Case No. 202203988 (Incident Date: June 19, 2022) involving Sergeant Seungwoo Seo, Tax No. 940729 (DADS No. 2023-28756)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Sergeant Seungwoo Seo and has determined that his actions do not warrant the proposed penalty.

In regards to DADS No. 2023-28756, the Police Commissioner has determined that with respect to the misconduct in Specification No. 1, Sergeant Seo did not violate Administrative Guide 304-21 (When a Member of the Service Encounters an Individual Observing, Photographing, and/or Recording Police Activity). In this matter Sergeant Seo first encountered the complainant in the vestibule of the 63rd Precinct using a GoPro Camera to record. Several officers made the complainant aware that he was not allowed to record and requested he turn off the camera. Eventually the complainant did leave the vestibule area, however, he remained in front of the precinct recording. Sergeant Seo did state to the complainant to stop recording while they were outside however, he did not take any additional action that would constitute interfering with an individual's right to record. This is made evident by the video footage that was provided by the complainant which reveals he continued recording without disruption.

Therefore, while the Police Commissioner agrees with the CCRB that the Charges and Specifications in this matter should be dismissed, the Police Commissioner intends to impose no disciplinary action for the allegation that Sergeant Seo interfered with the complainant's use of a recording device.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: John D'Alessandro, Esq.

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ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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ARVA RICE
INTERIM CHAIR

July 29, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case Nos. 202203988 (Incident Date: June 19, 2022) involving Sergeant Seungwoo Seo Tax No. 940729 (DADS Nos. 2023-28756)

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated July 24, 2024. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between the CCRB and the New York City Police Department, I am responding to Deputy Chief Marino's notification.

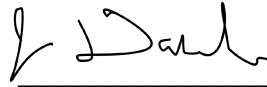
On May 2, 2024 in front of Assistant Deputy Commissioner Vanessa Facio-Lince, Sergeant Seo accepted the findings of substantiation to the Charges and Specifications in return for a sentence of a Schedule "A" Command Discipline with the forfeiture of five (5) vacation days. Deputy Chief Marino states that after reviewing the evidence in this case you believe that there is insufficient evidence that Sergeant Seo interfered with § 87(2)(b) use of a recording device and that you intend to impose no discipline on Sergeant Seo. The CCRB disagrees with this assessment.

The evidence in this matter is clear. § 87(2)(b) was standing on the sidewalk in front of the 63rd Precinct stationhouse filming with his camera. § 87(2)(b) was in a position where he was legally allowed to film. Nevertheless, Sergeant Seo stated to § 87(2)(b) that he was not allowed to have his camera on, and that he had to turn his camera off. Deputy Chief Marino's letter states that you determined that these actions of Sergeant Seo did not violate Administrative Guide 304-21 (When a Member of the Service Encounters an Individual Observing, Photographing and/or Recording Police Activity), and pointed to the fact that Sergeant Seo took no additional action that would have constituted interference with the right to record. However, the statements of Sergeant Seo alone clearly violate Administrative Guide 304-21, which states that an officer may not:

- (1) *Intentionally prevent, or attempt to prevent*, an individual from recording police activities.
- (2) Threaten, intimidate, *or otherwise discourage* an observer from recording police activities,
- (3) *Command an individual to cease recording when an individual is authorized to do so under law,...*
(emphasis added)

It is not in dispute that Sergeant Seo attempted to prevent and discourage [REDACTED] from recording where he was legally authorized to do so. The CCRB would ask the Police Commissioner to accept the CCRB's recommendation and penalty that was agreed to by Sergeant Seo and impose upon Sergeant Seo a Schedule "A" Command Discipline with the forfeiture of five (5) vacation days.

Respectfully submitted,



Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board